

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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RODNEY WILLIAMS,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER VINCENT PINTO, Shield No. 3290,
SERGEANT CHRISTOPHER AYAU, POLICE OFFICER
BRIAN MAGOOLAGHAN, Tax No. 95079; POLICE
OFFICER GOMEZ, Shield No. 16682, POLICE OFFICER
MEDINA, Shield No. 21574, SERGEANT SANCHEZ,
Shield No. 32734, and POLICE OFFICERS JOHN DOES
#s 1- 20 (names and numbers of whom are unknown at
present),

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer to the Complaint, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 1, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: **Police Officer Vincent Pinto**, Shield No. 3290, 23rd Precinct, 162 East 102nd Street, NY, NY 10429
Sergeant Christopher Ayau, 23rd Precinct, 162 East 102nd Street, NY, NY 10429
Police Officer Brian Magoolaghan, Tax No. 95079, 23rd Precinct, 162 East 102nd Street, NY, NY 10429
Police Officer Gomez, Shield No. 16682, 23rd Precinct, 162 East 102nd Street, NY, NY 10429
Police Officer Medina, Shield No. 21574, 23rd Precinct, 162 East 102nd Street, NY, NY 10429
Sergeant Sanchez, Shield No. 32734, 23rd Precinct, 162 East 102nd Street, NY, NY 10429

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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RODNEY WILLIAMS,

Plaintiff,

-against-

INDEX NO.:**VERIFIED COMPLAINT**

POLICE OFFICER VINCENT PINTO, Shield No. 3290,
 SERGEANT CHRISTOPHER AYAU, POLICE OFFICER
 BRIAN MAGOOLAGHAN, Tax No. 95079; POLICE
 OFFICER GOMEZ, Shield No. 16682, POLICE OFFICER
 MEDINA, Shield No. 21574, SERGEANT SANCHEZ,
 Shield No. 32734, and POLICE OFFICERS JOHN DOES
 #s 1- 20 (names and numbers of whom are unknown at
 present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff RODNEY WILLIAMS, by his attorneys, Jacobs & Hazan, LLP, as and for his
 Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 1, 2015, at approximately 8:00 pm, plaintiff Rodney Williams was lawfully present on his motorcycle, stopped at a traffic light in the vicinity of 96th Street and Third Avenue, New York, New York at which time defendants unlawfully stopped, questioned, frisked, searched and seized plaintiff without probable cause, reasonable suspicion or any legal justification. Thereafter, defendants damaged and seized plaintiff's motorcycle, without cause or legal justification and subjected plaintiff to the use of excessive force by punching plaintiff in the back of the head multiple times, slamming their knees into plaintiff's back multiple times, kicking plaintiff all over his body, and punching plaintiff all over his body. Plaintiff lost consciousness and suffered injuries to his back, chest, left shoulder, head, neck, and all over his body. Additionally, plaintiff suffered severe left hemiface numbness, extreme hypertension and appears to have suffered a stroke during the incident with defendants. Additionally, plaintiff was billed \$5,000 for the treatment he received at the hospital. The defendants provided the New York County District Attorney's Office with false, misleading and incomplete information and evidence in order to establish probable cause for the crimes they charged plaintiff with

committing. Plaintiff retained a criminal defense attorney for \$10,000 to represent him in the criminal case. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process regarding most of the crimes the officers charged plaintiff with committing and those crimes were dismissed in their entirety on January 13, 2016. Defendants also unlawfully seized plaintiff's motorcycle from September 1, 2015 through March 10, 2016 and charged plaintiff \$500 for the release of the motorcycle to plaintiff. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, seized plaintiff's vehicle, maliciously prosecuted plaintiff, denied plaintiff the right to due process/right to a fair trial, and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Rodney Williams is a resident of the state of New York.

3. Defendant Police Officer Vincent Pinto, Shield No. 3290, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer Vincent Pinto, Shield No. 3290, is and was at all times relevant herein, assigned to the 23rd Precinct.

5. Defendant Police Officer Vincent Pinto, Shield No. 3290 is being sued in his individual and official capacity.

6. Defendant Sergeant Christopher Ayau, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant Sergeant Christopher Ayau is and was at all times relevant herein, assigned to the 23rd Precinct.

8. Defendant Sergeant Christopher Ayau is being sued in his individual and official capacity.

9. Defendant Police Officer Brian Magoolaghan, Tax No. 95079, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant Police Officer Brian Magoolaghan, Tax No. 95079, is and was at all times relevant herein, assigned to the 23rd Precinct.

11. Defendant Police Officer Brian Magoolaghan, Tax No. 95079, is being sued in his individual and official capacity.

12. Defendant Police Officer Gomez, Shield No. 16682, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant Police Officer Gomez, Shield No. 16682, is and was at all times relevant herein, assigned to the 23rd Precinct.

14. Defendant Police Officer Gomez, Shield No. 16682, is being sued in his individual and official capacity.

15. Defendant Police Officer Medina, Shield No. 21574, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant Police Officer Medina, Shield No. 21574, is and was at all times relevant herein, assigned to the 23rd Precinct.

17. Defendant Police Officer Medina, Shield No. 21574, is being sued in his individual and official capacity.

18. Defendant Sergeant Sanchez, Shield No. 32734, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant Sergeant Sanchez, Shield No. 32734, is and was at all times relevant herein, assigned to the 23rd Precinct.

20. Defendant Sergeant Sanchez, Shield No. 32734, is being sued in his individual and official capacity.

21. Defendants Police Officers John Does #s 1-20 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Defendants Police Officers John Does #s 1-20 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On September 1, 2015, at approximately 8:00 p.m., plaintiff, an African American male, was lawfully present in the vicinity of 96th Street and Third Avenue, New York, New York, when the individually named defendant police officers unlawfully stopped, questioned, frisked, searched, unlawfully seized plaintiff, unlawfully damaged and seized plaintiff's motorcycle and subjected plaintiff to the use of excessive force.

28. On September 1, 2015, at approximately 8:00 pm, plaintiff Rodney Williams was lawfully present on his motorcycle, stopped at a traffic light in the vicinity of 96th Street and Third Avenue, New York, New York at which time n the motorcycle stalled.

29. While plaintiff was attempting to restart his motorcycle he adjusted the face shield attached to his helmet so that he could wipe away the sweat dripping from his forehead because it was very hot outside that day.

30. On September 1, 2015 at approximately 8:00 pm the defendant police officers were inside of their police vehicle stopped at the same traffic light as plaintiff, located in the vicinity of 96th Street and Third Avenue, New York, New York at which time the defendants unlawfully stopped, questioned, frisked, searched and seized plaintiff and his motorcycle without probable cause, reasonable suspicion or any legal justification.

31. The defendant police officers did not possess any objective facts or evidence to establish reasonable suspicion or probable cause to believe plaintiff committed a crime or violated the law in any manner.

32. The explanation provided by the defendant officers for stopping and seizing plaintiff and his motorcycle is not a valid legal basis for stopping and seizing plaintiff and his motorcycle.

33. According to the defendant officers, they stopped, and seized plaintiff and his motorcycle because when plaintiff adjusted the face shield attached to his helmet so that he could wipe away the sweat that was dripping from his forehead "plaintiff was not wearing his required face shield properly."

34. The defendant officers' explanation for why they stopped, questioned, frisked, searched and seized plaintiff and his motorcycle does not establish a legal basis for the stop and seizure by the defendants.

35. The defendants asked plaintiff to provide them with his driver's license and plaintiff complied with the defendants' request.

36. Plaintiff removed the key from the ignition of the vehicle because the vehicle had already stalled out anyway.

37. The defendants ordered plaintiff to move his motorcycle to the side of the road.

38. Plaintiff attempted to comply with the officers' order and began pushing the motorcycle to the side of the road.

39. However, as plaintiff was pushing the motorcycle to the side of the road the defendants began to falsely accuse plaintiff of attempting to flee the scene.

40. The defendants knew that they were falsely accusing plaintiff of attempting to flee and no reasonable police officer that observed plaintiff could have reached a conclusion that plaintiff was attempting to flee.

41. The defendants falsely accused plaintiff of attempting to flee in order to justify the damage they caused to the motorcycle and the injuries they caused to plaintiff when they used excessive force against him while they were placing him under arrest.

42. After the defendants falsely accused plaintiff of attempting to flee, the defendants rushed toward plaintiff in an unreasonably aggressive manner, (especially since plaintiff complied with the officers' orders), broke the windshield of plaintiff's motorcycle, and aggressively pushed the motorcycle to the ground.

43. Plaintiff was able to anticipate that the officers were about to use excessive force against him based upon the aggressive manner in which they approached him and knocked over the motorcycle; therefore, plaintiff dropped to the ground and protected his vital organs from blunt force trauma.

44. The defendants subjected plaintiff to the use of excessive force by punching plaintiff in the back of the head multiple times, slamming their knees into plaintiff's back multiple times, kicking plaintiff all over his body, and punching plaintiff all over his body.

45. The force used by defendants against plaintiff was not reasonable, was not provoked by plaintiff and was without legal justification.

46. At no time did plaintiff resist arrest in any manner.

47. Plaintiff lost consciousness and suffered injuries to his back, chest, left shoulder, head, neck, and all over his body. Additionally, plaintiff suffered severe left hemiface

numbness, extreme hypertension and appears to have suffered a stroke during the incident with defendants.

48. Plaintiff was transported to Metropolitan Hospital via ambulance to receive medical treatment for injuries to his back, chest, left shoulder, head, neck, and his entire body.

49. Additionally, plaintiff suffered severe left hemiface numbness, extreme hypertension and plaintiff appears to have suffered a stroke during the incident with defendants.

50. Defendants handcuffed plaintiff, without probable cause before he was transported to Metropolitan Hospital and he remained handcuffed throughout his stay at Metropolitan Hospital.

51. Plaintiff was discharged from Metropolitan Hospital on September 4, 2015 and transported to the 19th Precinct.

52. Plaintiff was billed \$5,000 for the treatment he received at the hospital.

53. The defendants provided the New York County District Attorney's Office with false, misleading and incomplete information and evidence in order to establish probable cause for the crimes they charged plaintiff with committing.

54. The defendants falsely and maliciously charged plaintiff with Assault in the Second Degree, Obstructing Governmental Administration in the Second Degree and Resisting Arrest.

55. The Defendants also charged plaintiff with the unrelated charges of Aggravated Unlicensed Operation of a Motor Vehicle in the Second and Third Degrees, which stem from a different set of core facts as compared with the other crimes plaintiff was falsely charged with committing.

56. Plaintiff was transported to New York County Central Booking and arraigned in New York County Criminal Court on September 4, 2015, charged with crimes he did not commit and was released on his own recognizance.

57. Plaintiff retained a criminal defense attorney for \$10,000 to represent him in the criminal case.

58. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process regarding the charges for Assault in the Second Degree, Obstructing Governmental Administration in the Second Degree and Resisting Arrest.

59. Plaintiff was required to appear in New York County Criminal Court on several occasions throughout the pendency of the criminal case.

60. On January 13, 2016 plaintiff pled guilty to Aggravated Unlicensed Operation of a Motor Vehicle and the charges for Assault in the Second Degree, Obstructing Governmental Administration in the Second Degree and Resisting Arrest terminated in plaintiff's favor and were dismissed in their entirety.

61. The defendants damaged and seized plaintiff's motorcycle, without cause or legal justification.

62. Defendants also unlawfully seized plaintiff's motorcycle from September 1, 2015 through March 10, 2016 and charged plaintiff \$500 for the release of the motorcycle to plaintiff.

63. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, seized and damaged plaintiff's vehicle, maliciously prosecuted plaintiff, denied plaintiff the right to due process/right to a fair trial, and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, unlawful seizure of property, unlawful damage to property, maliciously prosecuted, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

69. The conduct of defendants in stopping, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

74. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

75. Defendants lacked probable cause to search plaintiff.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

79. Plaintiff repeats and realleges paragraphs 1 through 78 as if fully set forth herein.

80. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

81. Defendants commenced and continued a criminal proceeding against plaintiff.

82. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

83. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

84. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Right to Due Process/ Fair Trial

87. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 86 with the same force and effect as if fully set forth herein.

88. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

89. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

90. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

91. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

92. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

95. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. The use of excessive force by defendants by punching plaintiff in the back of the head multiple times, slamming their knees into plaintiff's back multiple times, kicking plaintiff all over his body, and punching plaintiff all over his body was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States. Additionally, placing plaintiff in handcuffs and iron leg shackles to be transported via ambulance for medical treatment and detained at Metropolitan Hospital was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

97. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

98. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

99. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

SEVENTH CAUSE OF ACTION

Failure to Intervene

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

102. Defendants failed to intervene to prevent the unlawful conduct described herein.

103. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

104. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

107. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

108. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Rodney Williams demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 1, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 1, 2018

_____/s/
DAVID M. HAZAN